Information on making an application for review - Migration

(For persons not in immigration detention and for organisations) (M1)

Administrative
Review Tribunal

You can use this form (M1) if you are a person who is not in immigration detention, or if you are an organisation, to apply for review of a decision relating to a visa except for a decision about:

(a) a protection visa or protection findings

(b) cancellation of a business visa under section 134 of the *Migration Act 1958*

(c) refusal or cancellation of a visa on character grounds under section 501 of the Migration Act

(d) non-revocation of a visa cancellation under section 501CA of the Migration Act or

(e) the conditions on a Subclass 070 (Bridging (Removal Pending)) visa.

If you want to apply for a review of a decision described in (a), (b), (c), (d) or (e), you must use a different form which you can find on our website (www.art.gov.au). Contact us on 1800 228 333 if you are not sure this is the correct form.

Please read all of the information pages in this form before you start to fill in the application form (pages 1-14).

You must complete this form in English. If you are completing the form by hand use blue or black pen.

You may use an interpreter to assist you. See *'Information in other languages'* at the end of these information pages if you need assistance in your language.

You should complete all the details requested in this form. If you do not have enough space for all of your information, you can write the information on a separate sheet and attach it to your application.

Who can apply for review?

The Administrative Review Tribunal (the ART) reviews certain decisions made by the Department of Home Affairs (the Department). The Department's letter providing notification of the decision will specify whether the decision can be reviewed by the ART and who may apply for that review.

In this form 'you' refers to the review applicant. The review applicant(s) is the person or persons or organisation who is seeking review of the Department's decision. The visa applicant(s) is the person or persons who are the subject of the Department's decision.

Can an application cover other family members?

Generally, members of a family unit who are named as visa applicants in the Department's decision can be included in the one application form (a combined application). Please note that applications for review of decisions to cancel two or more visas cannot be combined. Please contact us if you need further information.

When should I apply for review?

There are strict timelines for applying for review. You **must** lodge your application for review within the time limit referred to in the letter from the Department notifying you of the decision. If you do not apply within the time limit, we will not be able to consider your application for review. We do not have any power to extend the time limit.

Required documents or information

If you have it, you must give us a copy of the letter from the Department notifying you of the decision at the same time as you lodge your application for review. If you don't have a copy of this letter, there are certain details you must provide in your application for review, otherwise your application may not be valid and we may not be able to consider it. For more information about minimum requirements for making a valid application, see our website (www.art.gov.au).

Dealing with the ART

You can deal with us directly or you can appoint someone to represent you and act on your behalf in relation to your application.

If you choose to appoint a person to represent you, this person is known as your representative. If you appoint a representative, they can:

- communicate with us on your behalf
- give us written evidence and written submissions on your behalf
- request access to documents relating to the review, and
- attend a hearing with you.

Under the *Migration Act 1958*, only certain people can provide 'immigration assistance'. They include:

- a registered migration agent
- an Australian lawyer who holds a practising certificate
- a close family member (your spouse, child, parent, brother or sister), or
- a nominator or sponsor if you are a visa applicant.

'Immigration assistance' includes where a person uses their knowledge or experience in migration to assist you to prepare for, or represent you in, an application at the ART.

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Only a registered migration agent or an Australian lawyer with a practising certificate can ask you to pay a fee for providing immigration assistance.

By law, all persons acting as migration agents in Australia must be registered with the Office of the Migration Agents Registration Authority (Office of the MARA).

You can check whether a migration agent is registered on the Office of the MARA's website (www.mara.gov.au).

More information about who can help you with your application can be found on our website (www.art.gov.au)

Corresponding with the ART

Where will correspondence and other documents be sent?

You can choose to have all correspondence/documents sent to you or you can authorise a person (known as the authorised recipient) to receive correspondence/ documents on your behalf in connection with the application.

If you appoint a representative in relation to your application, we will assume you are also authorising that person to communicate with us and receive correspondence/documents on your behalf in connection with your application. Any correspondence/ document that is sent to your representative or another person you authorise in writing will be taken to have been given to you.

In cases where more than one person applies for review, all correspondence/documents will be sent to the person identified as Person 1 in the application form unless we are notified otherwise in writing. Person 1 should advise all other applicants of any correspondence/documents from us.

If Person 1 has appointed a representative or authorised recipient then we will regard that appointment as applying to the other people named as review applicants in the application form unless we are notified otherwise in writing.

How will the ART send correspondence/documents?

We may send correspondence/documents by email, by fax or by post.

What will it cost to apply for review?

An application fee of $3,580 is payable except when applying for review of:

- a bridging visa decision (including any related decision to require a security bond) that resulted in a person being placed in immigration detention, or
- a decision relating to the conditions on a Subclass 070 (Bridging (Removal Pending)) visa, or
- a decision to refuse a visa to a person because they did not satisfy the secondary criteria for the visa. This decision includes a finding that the person, or another family member included in the application, satisfied a criterion that they had experienced family violence committed by the primary visa applicant, who is the person's former spouse or de facto partner.

The fee may be reduced by 50% (or 50% will be refunded if the full fee has been paid) if we are satisfied that payment of the fee would cause, or has caused, financial hardship to the review applicant. Form *Request for Fee Reduction* is available from any registry or from our website. Supporting documentary evidence is required for all fee reduction applications.

Where a fee is payable, you must either:

- pay the full application fee, or
- pay 50% of the application fee and lodge a fee reduction application with us,

before the deadline for lodging the application for review.

If a favourable decision is made in your case, we will refund 50% of the application fee if the full fee was paid.

If you withdraw your application, we can only refund your application fee in very limited circumstances.

How can I pay the application fee?

Payment can be made by cheque, money order, EFTPOS or credit card (Visa or MasterCard only). Cheques should be crossed and made payable to the *'Administrative Review Tribunal'*. (Payment is not considered to have been made if a cheque is dishonoured or a credit card payment is not approved.)

Privacy and your personal information

We collect personal information about you from you and others to process your application and carry out the review under the *Administrative Review Tribunal Act 2024* and the *Migration Act 1958*.

In making an application for review, you consent to the collection of personal information about you from the Department or person who made the decision, any other party to the review, or a relevant person or body, where collecting the information is reasonably necessary to carry out the review.

We will give a copy of your application form to the Department or person who made the decision and, if relevant, to any other party to the review.

We will usually give a copy of any relevant document given to us by you, or anyone else, to the other parties to the review for the purposes of the review and to the Department when the review is finalised. Information about you may also be disclosed to the Department or a relevant person or body in the course of making inquiries or requesting an opinion for the purposes of the review. For example, to education bodies, courts and law enforcement agencies.

The information we collect may also be used for other purposes relating to the administration of the *Migration Act 1958*, for another review involving you, if it is reasonably necessary to do so, or to improve our services.

Information available to the public

Where a migration review requires a Tribunal hearing,

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the hearing will usually be open to the public. The Tribunal may, on request, give members of the public access to evidence (exhibits) given to the Tribunal for a hearing.

If the Tribunal makes a written decision with a statement of reasons, it will usually be made public and published on the internet, including on the AustLII website (www.austlii.edu.au). For more information about the decisions we publish, see our *Publication of Decisions Policy* on our website.

Orders and laws restricting publication or disclosure

The Tribunal may make orders restricting disclosure or publication of information about you or others or evidence in a review, if it considers an order is appropriate in the circumstances. You can apply for an order by writing to us stating what information you want kept confidential and why.

In some cases, a law or the Tribunal's Practice Directions require that certain information be kept confidential or that hearings be held in private. This includes certain information covered by certificates given under the *Migration Act 1958* and the identity of applicants for protection reviews and their relatives or dependents. Hearings of Protection reviews must be held in private.

Access to information

Under section 362A of the *Migration Act 1958*, you can ask the Department of Home Affairs to give you access to the written material that it has given to us for the purposes of the review.

For more information, including how you can access information we hold about you and how to make privacy complaints, see our Privacy Policy on our website www.art.gov.au, or call us on 1800 228 333.

How do I lodge an application for review?

Applications for review using this form can be lodged by email, by post or in person. Available options are set out in the table on the next page.

An application for review using this form is taken to have been lodged with us at the time that it is received by us.

If you want to apply online, which is a convenient 24 hour, 7 days a week service, go to www.art.gov.au.

What happens once I lodge the application for review?

We will send you a letter confirming receipt of your application.

We will also ask the Department to send us relevant documents relating to your case. For further information on the conduct of reviews, please refer to our website.

Changes to your contact details

While we are dealing with your application, you must immediately advise us, in writing, of any change in your contact details (including changes to your residential (home) address). You should also advise the Department of any change in your address or other contact details. If you are unable to collect your mail, you should arrange for someone to collect your mail on your behalf.

You must also inform us immediately in writing if:

- you change your authorised recipient or representative, or cancel your representative's authority to act on your behalf, or
- the contact details of your authorised recipient or your representative change.

If we do not receive a response to important correspondence we send you, your case may be decided without further notice.

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Method of lodgement and contact

Online

You can complete an application online at www.art.gov.au

By post

Applications for review can be posted:

Administrative Review Tribunal
GPO Box 9955, Sydney NSW 2001

Administrative Review Tribunal
GPO Box 9955, Melbourne VIC 3001

Administrative Review Tribunal
GPO Box 9955, Brisbane QLD 4001

Administrative Review Tribunal
GPO Box 9955, Adelaide SA 5001

Administrative Review Tribunal
GPO Box 9955, Perth WA 6848

By email

You can scan and send a copy of your completed application for review to reviews@art.gov.au.

By hand

Applications for review can be lodged on weekdays between 8:30am and 5:00pm in the following locations:

Sydney
Level 6, 83 Clarence Street, Sydney NSW

Melbourne
Level 4, 15 William Street, Melbourne VIC

Brisbane
Level 6, 295 Ann Street, Brisbane QLD

Adelaide
Level 2, 1 King William Street, Adelaide SA

Perth
Level 13, 111 St Georges Terrace, Perth WA

Contacts

Website	www.art.gov.au
National telephone enquiry number	1800 228 333
Email	reviews@art.gov.au

Information in other languages

For assistance in your language please contact TIS ☎ 131 450 (local call cost only)

للحصول على المساعدة بلغتكم اتصلوا بخدمة الترجمة الهاتفية (TIS) ☎ 131 450 (لقاء كلفة مكالمة محلية فقط)

আপনার ভাষায় সাহায্যের জন্য, অনুগ্রহপূর্বক টিস্ (TIS) ☎ এ ১৩১৪৫০ (131 450) নম্বরে যোগাযোগ করুন (শুধুমাত্র স্থানীয় কল এর খরচ)।

如需传译员的协助，请联系TIS,电话号码: ☎ 131 450 (按本地电话收费)

برای کمک به زبان خودتان لطفا با TIS به تلیفون ☎ 131450 تماس بگیرید(بمصرف مخابره محلی)

Kevaka ko ni gadreva na veivuke ena vosa vakaviti,e kerei mo ni veitaratara kei na TIS e na naba ni televoni ☎ 131450 (na isau ni qiri e tautauvata ga kei na isau ni nomuni qirita e dua e na nomuni yasa ni koro)

તમારી ભાષામાં મદદ મેળવવા માટે કૃપા કરીને TIS ☎ 131 450 નંબર પર સંપર્ક કરશો. (ફક્ત સ્થાનિક ફોન દર લાગૂ પડશે.)

अपनी भाषा मे सहायता के लिये कृपया टि आई एस (TIS) से ☎ (131 450) पर सम्पर्क करे ध्खर्चा केवल स्थानीय काल का लगेगा॰

Untuk bantuan dalam bahasa Anda harap menghubungi TIS ☎ 131 450 (dengan biaya telpon lokal)

귀하의 모국어 도움이 필요하시면 ☎ 131 450 으로 TIS에 문의해 주십시오(시내 통화요금 적용)

Untuk bantuan dalam bahasa anda, sila hubungi TIS ☎ 131 450 (bayaran panggilan tempatan sahaja)

നിങ്ങളുടെ സ്വന്തം ഭാഷയിലുള്ള സഹായത്തിന് ടി.ഐ.എസ് - നെ ☎ 131 450 -ൽ വിളിക്കുക (ലോക്കൽ കോളിന്റെ ചാർജ് മാത്രം).

Өөрийн эх хэл дээр туслалцаа авахын тулд TIS-ийн ☎ 131 450 дугаар руу холбогдоно уу (зөвхөн орон нутгийн утсан ярианы үнээр)

तपाईलाई आफ्नो भाषामा सहयोग चाहिए कृपया TIS ☎ 131 450 मा सम्पर्क राख्नु होला। (स्थानिय फोनको मात्र खर्च लाग्ने छ)

په خپله ژبه کی د مرستې لپاره لطفاً TIS ته په ☎ 131450 کی زنگ ووهی (د محلی مخابرې په بګه)

برای دریافت کمک به زبان خودتان لطفا با TIS به شماره ☎ 131 450 تماس بگیرید. (با هزینه تلفن محلی)

Pomoc we własnym języku uzyskać można kontaktując się z TIS pod numerem ☎ 131 450 (koszt połączenia miejscowego)

Para ajuda na sua língua faça o favor de contactar TIS no número ☎ 131 450 (custo de chamada local)

ਆਪਣੀ ਭਾਸ਼ਾ ਵਿਚ ਸਹਾਇਤਾ ਪ੍ਰਾਪਤ ਕਰਨ ਵਾਸਤੇ ਕ੍ਰਿਪਾ ਕਰਕੇ TIS (ਟਿਸ) ਨੂੰ ☎ 131 450 ਨੰਬਰ ਉਤੇ ਫੋਨ ਕਰੋ ।

Если вам нужна помощь переводчика, то позвоните в переводческую службу TIS по номеру ☎ 131 450 (по стоимости местного звонка)

ඔබගේ භාෂාව හා සම්බන්ධයෙන් උපකාර සඳහා අමතන්න TIS ☎ 131 450 (අභ්‍යන්තර ඇමතීම් ගාස්තුව පමණයි)

Para solicitar ayuda en su idioma, favor de llamar a TIS al número ☎ 131 450 (al costo de una llamada local)

Para sa tulong sa iyong sariling wika mangyari lamang na kumontak sa TIS ☎ 131 450 (sa halaga lamang ng lokal na tawag)

ஊங்கள் மொழியில் உதவிக்குத் தயவு செய்து ரிஸ்சுடன் (வுஜளு) ☎ 131 450 ல் தொடர்பு கொள்ளவும்(உள்ளூர் அழைப்புக் கட்டணம் மட்டுமே)

หากท่านต้องการความช่วยเหลือเป็นภาษาไทย โปรดติดต่อ TIS หมายเลข ☎ 131 450 (ค่า โทรศัพท์ราคาท้องถิ่นเท่านั้น)

Ka 'I ai ha'o fiema'u tokoni fekau'aki pea mo 'etau lea, kataki 'o fetu'utaki ki he TIS 'I he ☎ 131 450 ('I he totongi fakalotofonua pe.)

Kendi dilinizde yardım için lütfen ☎ 131 450'den TIS'i arayın (şehir içi telefon ücreti karşılığı)

اپنی زبان میں مدد کیلئے ، براہ کرم ٹی آئی ایس (TIS) سے فون نمبر ☎ 131 450 پر رابطہ کریں (صرف مقامی کال کی قیمت پر)

Để được giúp đỡ bằng tiếng Việt, xin quí vị gọi cho Dịch Vụ Thông Ngôn và Phiên Dịch (TIS) số ☎ 131 450 (giá bằng cú gọi địa phương)

Please keep these information pages for your reference

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Application for review - Migration

(For persons not in immigration detention and for organisations) (M1)

Administrative
Review Tribunal

Note: Read the information pages before you complete this form.
This form must be completed in English. If you are completing this form by hand use blue or black pen.

A Are you applying for review of a decision about:

- a protection visa or protection findings
- the cancellation of a business visa under section 134 of the Migration Act
- the refusal or cancellation of a visa on character grounds under section 501 of the Migration Act
- the non-revocation of a visa cancellation under section 501CA of the Migration Act, or
- the conditions on a Subclass 070 (Bridging (Removal Pending)) visa?

No ☐ ▶ Go to next question

Yes ☐ ▶ **You may not be completing the correct form.** Please contact us on 1800 228 333

Note: A 'protection visa' means a protection visa (Class XA - Subclass 866), a temporary protection visa (Class XD – Subclass 785) or a safe haven enterprise visa (Class XE – Subclass 790).

B Are you an individual or an organisation that has a right to apply for review?

Individual ☐ ▶ Go to next question

Organisation ☐ ▶ **Go to Part B** — you do not need to complete Part A.

C Are you in immigration detention?

No ☐ ▶ Go to Part A

Yes ☐ ▶ **You should not complete this form**. Please use form M2

Part A — Details of person(s) applying for review

Important: Please read *'Who can apply for review?'* in the information pages before filling out this part.

The purpose of this Part is to collect information about the person, or persons, applying for review.

If more than one person is applying for review, one person (Person 1) should provide their details at Question 1. The details of the other persons should be provided at Question 5.

1 Details of the person applying for review

Person 1

Mr ☐ Mrs ☐ Miss ☐ Ms ☐ Other

Family name

Given names

Have you been known by any other names?

No ☐

Yes ☐ ▶ Family name

Given names

What type of name was this? (e.g. alias, name before marriage)

Date of birth DAY MONTH YEAR

Male ☐ Female ☐ Unspecified ☐

Nationality

Country of birth

Passport number

Country of issue

Are you an Australian citizen or permanent resident?

No ☐

Yes ☐

2 Do you need an interpreter when communicating with us?

No ☐

Yes ☐ ▶ Language/Dialect

3 Person 1's contact details

Address in Australia where you currently live

State/Territory/Postcode

Contact telephone numbers in Australia

Daytime ( )

Evening ( )

Mobile

Fax ( )

Your email address

4 Are any other persons applying for review?

No ☐ ▶ **Go to Part C** — you do not need to complete Questions 5 and 6 or Part B

Yes ☐ ▶ Go to next question

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5 **Details of all other persons applying for review** —
Please read '*Can an application cover other family members*?' in the information pages before you complete this question.

	Title (eg.Mr/Mrs)*	Full name	Date of birth	Relationship to person 1	Gender (M/F/X)*
Person 2		Family name:			
		Given names:			
Person 3		Family name:			
		Given names:			
Person 4		Family name:			
		Given names:			
Person 5		Family name:			
		Given names:			

* M = Male; F = Female; X = Unspecified

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6 Are there more than five persons included in this application?

No ☐

Yes ☐ ▶ Total number of persons included ☐

Please attach details of all other persons on a separate sheet.

▶▶ **Go to Part C** — you do not need to complete Part B

Part B — Details of the organisation applying for review

7 Name of organisation

8 Trading name
(if same as organisation name, write 'AS ABOVE')

9 ABN or ACN

10 Business address

State/Territory Postcode

11 Contact person's details

Mr ☐ Mrs ☐ Miss ☐ Ms ☐ Other

Family name

Given names

Position in the organisation

Contact numbers

Daytime ( )

Evening ( )

Mobile

Fax ( )

Email address

Does the contact person need an interpreter when communicating with us?

No ☐

Yes ☐ ▶ Language/Dialect

Part C — Decision to be reviewed

Please attach a copy of the decision and the notification letter from the Department.

12 What decision do you want reviewed?

Note: If your decision relates to a points test assessment and a decision has been made to refuse to grant the visa applicant(s) a visa, please select 'Visa refusal' not 'Points test assessment'.

- ☐ Visa refusal
- ☐ Visa cancellation
- ☐ Non-revocation of a visa cancellation

For visa refusal or cancellation, or non-revocation, give details of the visa

Visa class ☐☐ Subclass ☐☐☐

Date of decision DAY / MONTH / YEAR

- ☐ Points test assessment
- ☐ Refusal of approval as a business, work or professional development sponsor
- ☐ Bar on approval as a business, work or professional development sponsor
- ☐ Cancellation of approval as a business, work or professional development sponsor
- ☐ Refusal of nominated activity or position
- ☐ Critical technology related study approval refusal
- ☐ Other — please specify

13 Details of the letter from the Department notifying of the decision

How was the letter received? By post ☐ By hand ☐ By fax or email from the Department ☐

Date of letter from the Department DAY / MONTH / YEAR

Department's file number (if known)

Part D — Your capacity to apply for review

The review applicant must be the person or organisation that is entitled to apply for review of the decision.

14 What is your capacity to apply for review?

- The **visa applicant** ☐
- The **visa holder** whose approval to study has been refused ☐
- The **former visa holder** whose visa has been cancelled ☐

Go to Part F — you do not need to complete Part E

- The **sponsor or nominator** ☐
- A **close relative** of the visa applicant(s) (i.e. spouse, child, parent, brother or sister) ☐

Part E — Details of visa applicant(s)

The purpose of this Part is to collect information about the visa applicant(s).

This Part only needs to be completed if the application for review is:

- being made by a person other than the visa applicant (i.e. the sponsor, nominator or close relative of the visa applicant(s)), and
- made in relation to:
  - a decision refusing to grant a visa, or
  - a decision relating to a points test assessment.

15 Details of visa applicant 1

Mr ☐ Mrs ☐ Miss ☐ Ms ☐ Other

Family name

Given names

Have you been known by any other names?

No ☐

Yes ☐ ▶ Family name

Given names

What type of name was this? (e.g. alias, name before marriage)

Date of birth DAY / MONTH / YEAR

Male ☐ Female ☐ Unspecified ☐

Nationality

Country of birth

Passport number

Country of issue

Address where visa applicant 1 currently lives

State/Territory Postcode

Contact telephone numbers

Daytime ( )

Evening ( )

Mobile

Fax ( )

Email address

Does visa applicant 1 need an interpreter when communicating with us?

No ☐

Yes ☐ ▶ Language/Dialect

16 Are there any other visa applicants?

No ☐ ▶ **Go to Part F**

Yes ☐ ▶ Go to next question

17 Details of all other visa applicants

	Title (eg.Mr/ Mrs)*	Full name	Date of birth	Relationship to Visa applicant 1	Gender (M/F/X)*
Visa applicant 2		Family name:			
		Given names:			
Visa applicant 3		Family name:			
		Given names:			
Visa applicant 4		Family name:			
		Given names:			
Visa applicant 5		Family name:			
		Given names:			

* M = Male; F = Female; X = Unspecified

18 Are there more than five visa applicants?

No ☐

Yes ☐ ▶ Total number of visa applicants ☐

Please attach details of all other visa applicants on a separate sheet.

Part F — Representative details

Important: Please read '*Dealing with the ART*' in the information pages before filling out this Part.

Note: You can appoint a person to represent you and act on your behalf in relation to your application. This person is known as your representative. If you appoint a representative, they can:

- communicate with us on your behalf
- give us written evidence and written submissions on your behalf
- request access to documents relating to the review, and
- attend a hearing with you.

If you appoint a representative, we will assume you are also authorising that person to be your authorised recipient to receive correspondence/documents from us on your behalf in relation to your application.

In cases where more than one person applies for review, we will regard the appointed representative of Person 1 as the representative and authorised recipient of all persons applying for review unless notfied otherwise in writing.

You can deal with us directly if you do not want to appoint a representative.

19 Do you want to appoint a representative to act on your behalf and to be your authorised recipient?

No ☐ ▶ **Go to Part G**

Yes ☐ ▶ Complete questions 20, 21 and 22

20 Type of representative

Nominator or sponsor ☐

Close family member ☐

Registered migration agent[a] ☐ ▶ Migration Agent Registration Number (MARN)

Client reference number (if applicable)

Australian lawyer who holds a practising certificate[a] ☐ ▶ Australian Legal Practitioner Number[b] (if applicable)

Former Migration Agent Registration Number (MARN) (if applicable)

Client reference number (if applicable)

Other ☐ ▶ Please specify

Notes:

[a] Some registered migration agents may also be Australian lawyers. If your representative is representing you as a registered migration agent, select 'Registered migration agent'. If they are representing you as an Australian lawyer in connection with legal practice, select 'Australian lawyer who holds a practising certificate'.

[b] This is the ID number that the Department of Home Affairs may issue to an Australian lawyer providing immigration assistance in connection with a legal practice.

21 Representative's details

Mr ☐ Mrs ☐ Miss ☐ Ms ☐ Other

Family name

Given names

Organisation name (if applicable)

Postal address

State/Territory/Postcode

Contact numbers

Daytime ( )

Evening ( )

Mobile

Fax ( )

Email address

22 Representative's signature

DAY MONTH YEAR

/ /

Note for migration agents: If this Part is completed and the form signed on page 12, you do not need to attach a separate *MR1 Registered Migration Agent Notice Under s312B* form.

Now go to Part H — you do not need to complete Part G

Part G — Where do you want us to send correspondence and other documents about your application?

Important: Only complete this Part if you have not appointed a representative in Part F.

Note 1: If you do not appoint a representative then we will send correspondence/documents for all persons included in this application to the person you specify below.

23 *Only complete this question if you **have not** appointed a representative under Part F.*

Please send correspondence about this application to *(choose ONE option only)*:

- **To me (Person 1)** ☐ Please give your contact details

Postal address

State/Territory Postcode

Fax ( )

Email address

OR

- **To my authorised recipient** ☐ Please give their contact details

Name

Postal address

State/Territory Postcode

Phone ( )

Fax ( )

Email address

OR

- **To the contact person in the organisation nominated at Part B** ☐ Please give their contact details

Postal address

State/Territory Postcode

Part H - Communication by email

Note: If you have provided an email address, we may use the email address to contact you. You can also agree to receiving all case correspondence by email, including hearing notices, written requests to comment on adverse information and decision notifications. You should note that these communications may include sensitive personal information and that you should consider your online security and email settings. Please check that emails from the ART do not appear in your junk folder rather than your inbox, and adjust your email settings as appropriate to ensure we can email you. Information about online security is available on our website www.art.gov.au.

24 Do you agree to us sending all correspondence by email, acknowledging that there are risks in transmitting information via email and that while we strive to protect such information, we cannot guarantee the security or integrity of information transmitted via email or by other means?

Yes ☐
No ☐

Part I — Payment details

A fee is payable except in very limited circumstances. Please read *'What will it cost to apply for review?'* in the information pages.

25 How will you pay your application fee?

Cheque ☐
Money order ☐
▶ Please make payable to: "Administrative Review Tribunal"

EFTPOS ☐ ▶ Only for payments made in person

Credit card ☐ ▶ Give details below

Card type MasterCard ☐ Visa ☐

Amount $

Credit card number

Expiry date

Cardholder's name

Signature of cardholder

Note: Payment is not considered to have been made if the cheque is dishonoured or the credit card payment is not approved.

Part J — Declaration

This form should be signed by each person, or organisation, applying for review.

Note 1: Where you are unable to sign the form in person, you may instruct another person (e.g. Person 1 or your representative) to sign the form for you. You must read the declaration or have the declaration read to you, before the form is signed.

Note 2: If the person applying for review is under 18 years of age or lacks legal capacity to sign on their own behalf, the form should be signed by a parent or guardian on that person's behalf.

Note 3: The provision of false or misleading information is subject to penalties under the *Migration Act 1958*.

26 **I declare** that:

- I understand the information supplied to me in this form and in the information pages, and the information I have provided in this form and any attachments is complete and correct in every detail, and
- I consent to the ART collecting personal/sensitive information about me from the Department of Home Affairs and other government agencies, entities, persons or publicly available sources, where that information is likely to be relevant to this review, and using it for the purposes of this review, and
- I consent to the personal/sensitive information that I provide to the ART, or that the ART collects from other sources about me, being collected and used for purposes relating to the *Administrative Review Tribunal Act 2024* and the *Migration Act 1958*, and
- I consent to any information/documents that I provide to the ART, or that the ART collects from other sources about me, being given to the Department at the end of the review, including personal/sensitive information, and
- I will inform the ART of any changes to my circumstances (e.g. marital status, changes to my family composition) while my application is being considered, and
- I understand that if I change my contact details and do not inform the ART of my new address or other new contact details, the ART may proceed to make a decision about my case even if it cannot contact me, and
- if this application includes more than one person, I undertake to inform each other person of the contents of any communication from the ART.

Person 1	✍	Date / /	Family name
			Given name

If there is more than one person applying, the other person(s) should complete this declaration next page.

I declare that:

- I understand the information supplied to me in this form and in the information pages, and the information I have provided in this form and any attachments is complete and correct in every detail, and
- I consent to the ART collecting personal/sensitive information about me from the Department of Home Affairs and other government agencies, entities, persons or publicly available sources, where that information is likely to be relevant to this review, and using it for the purposes of this review, and
- I consent to the personal/sensitive information that I provide to the ART, or that the ART collects from other sources about me, being collected and used for purposes relating to the *Administrative Review Tribunal Act 2024* and *Migration Act 1958*, and
- I consent to any information/documents that I provide to the ART, or that the ART collects from other sources about me, being given to the Department at the end of the review, including personal/sensitive information, and
- I will inform the ART of any changes to my circumstances (e.g. marital status, changes to my family composition) while my application is being considered, and
- I understand that if I change my contact details and do not inform the ART of my new address or other new contact details, the ART may proceed to make a decision about my case even if it cannot contact me, and
- I authorise the ART to communicate with Person 1 or any person whom Person 1 appoints or authorises the ART to communicate with in relation to my application unless I advise otherwise in writing.

Person 2		Date / /	Family name Given name
Person 3		Date / /	Family name Given name
Person 4		Date / /	Family name Given name
Person 5		Date / /	Family name Given name

Part K — Checklist

27 Please complete this checklist to make sure this application is complete

- ☐ All relevant questions have been answered.
- ☐ The Declaration at Part J has been completed.

Attachments

- ☐ A copy of the notification letter from the Department of Home Affairs (see Important information below).
- ☐ A copy of the decision from the Department of Home Affairs.
- ☐ If there are more than 5 person(s) included in the application, details of the other person(s).
- ☐ If there are more than 5 visa applicants included in the application, details of the other visa applicants.
- ☐ If you are paying the application fee by cheque or money order, attach it to this application.
- ☐ Any evidence that will support your application or any comments you wish to make on why you disagree with the decision. You can provide additional documentation to us at any time before the decision on the review is made.
- ☐ If you are applying for a fee reduction, attach a completed *Request for Fee Reduction form* and supporting documents.

Note: All documents should be in English, or translated into English by a qualified translator. You should provide us with both the English translation and the original document (or a certified copy).

Lodging this application

Lodge this application at the ART as instructed in the information pages.

Important: You must lodge this application within the time limit referred to in the Department's letter that notified you of the decision and attach a copy of the Department's letter if you have it. If you don't have a copy of the Department's letter, there are certain details you must provide in this application, otherwise your application may not be valid and we may not be able to consider it. For more information about minimum requirements for making a valid application, see our website www.art.gov.au.